

# Online Complaint Form



**COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE**

*Confidential under California Constitution Article VI, Section 18, and Commission Rule 102*

For instructions on filling out and submitting this form, please visit the commission's [Online Complaint Instructions webpage](#).

**Date Submitted**  
7/20/2024 10:19 PM

**Entry Number**  
8,024

\* Indicates a required field

## Your information

### Complainant 1

**Your name**  
Kostiantyn Mars

**Your pronouns (e.g., he/him; she/her; they/them)**

**Your email**  
constantine.mars@gmail.com

**Your telephone number**  
(408) 518-0088

**Your address**  
PO Box 8081, San Jose, California 95155

## Judge and conduct

### Judge 1

**Name of judge**  
Stephen Lowney

**Or Name of court commissioner or referee**

**Court Level**  
Superior Court

**Court of Appeal District**

**County**  
Santa Clara

**Type of court case**

Family Law

**Case name**

Dissolution of Family Mars

**Case number**

22FL003144

**Your relationship to the case**

Litigant/Family/Friend

**Date or dates conduct occurred**

2024/02/01

**Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)\***

**Complaint**

On 02/01/2024 suspected of bribery crook ("judicial officer") Stephen Lowney threatened me that it is impossible to disqualify judicial officer, and that Presiding Judge Beth McGowen will cover any fraud and any crimes of organized criminals like Andrea Flint and Stephen Lowney (video recording of that hearing attached in Evidence PDF).

Lowney said threats in sneaky "lawyer" style - so it sounded like something vaguely between denial of disqualification of Flint, and between firm statement "I will punish you for disqualifying her, and nobody can prove that I punished you, since I'll do it sneaky, and Beth McGowen will deny everything".

Also from words of Stephen Lowney it was absolutely clear that "it will be very hard to impossible to prove bribery of judges" (which so far became obvious systematic tradition in Department 79 of Santa Clara County Court - where THREE BRIBED CROOKS WERE DISQUALIFIED IN A ROW DURING ONE YEAR FROM THE SAME CASE: STEPHEN LOWNEY, ANDREA FLINT, JAMES TOWERY).

Stephen was very convincing saying that "are you sure that Flint was disqualified?", and "did you ever hear from Presiding Judge anything"?

It is very unfortunate to confirm that Presiding Judge Beth McGowen actually refused to act on TWO Statements of Disqualification filed against Andrea Flint, and served to Presiding Judge. And unfortunately, because Beth McGowen never confirmed DISQUALIFICATION AND NULLIFICATION OF ALL ORDERS OF BRIBED CROOK ANDREA FLINT, orders of Flint 11/28/2023 were used to arrest me 06/14/2024 for bringing donuts and hot chocolate to my son Max Mars (even though those orders were void because Flint had no judicial power due to her disqualification), and other fraud on court orders of Flint 06/29/2023, 07/31/2023 and 11/13/2023 were used to imprison my son in hands of violent schizophrenic mother for TWO YEARS without right for a phone call, and used by disqualified crook Lowney for ordering my arrest for FTA on fabricated contempt hearing 06/17/2024 (while disqualified crook Lowney had no judicial power due to his ongoing disqualification, and all points of fabricated contempt were requested to be reconsidered and nullified because were obtained by repetitive fraud on court committed by disqualified crooks Lowney and Flint).

As law obedient citizen, who faced organized crime in Santa Clara County Superior Court first time in my life, I was shocked that bribed judge so shamelessly threatening me and convincing me that lawful disqualification of bribed judge is impossible, and everybody, including Presiding Judge Beth McGowen will deny and conceal disqualification.

After those convincing threats, bribed crook Lowney punished me by \$500 271 sanctions for requesting

reconsideration of harmful financial fraud orders, obtained by fraud on court committed by disqualified crook Andrea Flint and Nancy Roberts.

I WAS SHOCKED THAT BRIBED CROOKS ("JUDICIAL OFFICERS") LIKE LOWNEY AND FLINT SO SHAMELESSLY VIOLATE THE LAW IN THE COURTROOM, AND THREATEN ME, LAW OBEDIENT CITIZEN, AND RETALIATE AGAINST ME FOR REQUESTING TO RECONSIDER HARMFUL FRAUD ORDERS OBTAINED BY FRAUD ON COURT COMMITTED BY DISQUALIFIED BRIBED CROOK ANDREA FLINT RIGHT BEFORE HER REMOVAL FROM COURT.

I respectfully attach video evidence of Stephen Lowney committing fraud on court, and using threats and unlawful punishment through abuse of judicial power against me, petitioner on this case.

I also attach additional evidence of fraud on court, committed by disqualified crook Andrea Flint, which resulted in harmful financial fraud orders 11/13/2023, which I requested bribed crook Lowney to reconsider 02/01/2023 - in response to which Lowney threatened me that it is impossible to disqualify judicial officer, and punished me by financial sanctions \$500 for requesting reconsideration of financial fraud orders.

Dear Commission on Judicial Performance and Chief Justice Patricia Guerrero,  
I respectfully ask your help to prosecute and terminate from court disqualified crooks Stephen Lowney and Andrea Flint, discipline and terminate from court Presiding Judge Beth McGowen for supporting and endorsing bribery and organized crime in Santa Clara Superior Court, and file and serve by email to me OFFICIAL CONFIRMATION OF DISQUALIFICATION AND NULLIFICATION OF ALL ORDERS OF ALL THREE DISQUALIFIED CROOKS STEPHEN LOWNEY, ANDREA FLINT, JAMES TOWERY - WHO WERE DISQUALIFIED DURING ONE SINGLE YEAR FROM ONE SINGLE CASE 22FL003144.

Appreciate your prompt attention to this urgent matter.  
Thank you

#### **File Upload**

Evidence for Complaint 2024-02-01 - Threatening that it is impossible to disqualify judge.pdf

2024-02-20 Disqualification against Lowney.pdf

2023-11-13 Disqualification against Flint.pdf

2023-11-30 Disqualification against Flint Amended.pdf

PAJAR Response - Flint.pdf

2024-02-01 [Lowney] Sanctions \$500 for request to reconsider financial fraud of FLint, reconsideration denied.pdf

## **Judge 2**

### **Name of judge**

Beth McGowen

### **Or Name of court commissioner or referee**

### **Court Level**

Superior Court

### **Court of Appeal District**

**County**  
Santa Clara

**Type of court case**  
Family Law

**Case name**  
Dissolution of Family Mars

**Case number**  
22FL003144

**Your relationship to the case**  
Litigant/Family/Friend

**Date or dates conduct occurred**  
02/01/2023, 11/13/2023, 11/28/2023, 11/30/2023

**Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)\***

**Complaint**

As disqualified crook ("judicial officer") Stephen Lowney stated during his threats and repetitive fraud on court on hearing 02/01/2023, Presiding Judge Beth McGowen never acted on TWO Statements of Disqualification (11/13/2023 and 11/30/2023) against disqualified bribed crook ("judicial officer") Andrea Flint.

Even more - disqualified bribed crook ("judicial officer") Andrea Flint continued ruling on the case 22FL003144 even while having no judicial power to do so due to her ongoing disqualification started 11/13/2023 when the first Statement of Disqualification was filed against Flint.

On 11/28/2023 disqualified crook Andrea Flint signed DVRO prohibiting me all contact with my son Max Mars - for me greeting my son Max with his birthday 11/23/2023, when his aggressive schizophrenic mother Hanna Mars was beating Max and forcibly dragging him inside house away from me - provoking fight with Max, after which Max fought her, was able to get out from forcible clinch of schizophrenic mother, and requested her to give him extra couple of minutes to talk with father, who was violently removed from Max's life for years due to fraud on court orders signed by disqualified bribed crooks Andrea Flint and James Towery.

Because Beth McGowen never sent any OFFICIAL CONFIRMATION OF DISQUALIFICATION OF ANDREA FLINT AND NULLIFICATION OF ALL HER ORDERS OBTAINED BY FRAUD ON COURT, harmful fraud on court orders of Flint stayed and were used for arresting me on 06/14/2024 for bringing donuts and hot chocolate to my son Max Mars, who recently complained that schizophrenic mother is repeatedly beating him, and is saying that I abandoned Max and don't care about him being beaten by mother schizophrenic anymore.

Again, multiple harmful orders of disqualified crook Andrea Flint, obtained by fraud on court, including orders 06/29/2023, 07/31/2023, 11/13/2023, 11/28/2023 were NEVER OFFICIALLY NULLIFIED DESPITE TWO STATEMENTS OF DISQUALIFICATION AGAINST FLINT AND REQUESTS TO NULLIFY ALL ORDERS OF DISQUALIFIED CROOK ANDREA FLINT OBTAINED BY FRAUD ON COURT.

Those harmful orders stayed and were used by disqualified bribed crook Stephen Lowney to order my

arrest for FTA to fabricated contempt hearing, for ordering financial sanctions 271 \$500 for requesting to reconsider financial fraud orders of disqualified crook Andrea Flint, which had to be OFFICIALLY NULLIFIED.

It is obvious that all that harm, including beating my son Max Mars on his birthday 11/23/2023, my arrest 06/14/2024, Vexatious Litigant order against me 03/11/2024, and Lowney's order to arrest me 06/17/2024 would not happen, if Presiding Judge Beth McGowen will carry her responsibilities properly, and will officially confirm DISQUALIFICATION AND NULLIFICATION OF ALL ORDERS OF DISQUALIFIED CROOK ANDREA FLINT RETROACTIVELY TO 09/13/2022.

It is also absolutely gruesome that Presiding Judge Beth McGowen never officially confirmed disqualification of ALL THREE DISQUALIFIED CROOKS STEPHEN LOWNEY, ANDREA FLINT, JAMES TOWERY, DISQUALIFIED IN ABOUT ONE SINGLE YEAR FROM ONE SINGLE CASE 22FL003144.

Repetitive bribery of disqualified judges, committed by Nancy Roberts on this case 22FL003144 with the sole goal to obtain through REPETITIVE FRAUD ON COURT, COMMITTED BY THREE DISQUALIFIED BRIBED CROOKS ("JUDICIAL OFFICERS") TRANSFER OF CUSTODY FROM PRIMARY PARENT TO VIOLENT SCHIZOPHRENIC, WHO PROMISED TO "BURY OUR SON IN UKRAINIAN SOIL SO YOU WILL NEVER SEE HIM AGAIN" - is absolutely impermissible, but unfortunately happened during very short period of time.

Presiding Judge Beth McGowen refused to stop UNCONTROLLABLE OUTBURST OF BRIBERY, REPETITIVE FRAUD ON COURT, AND ORGANIZED CRIME COMMITTED UNDER LABEL OF LAW IN SANTA CLARA COUNTY SUPERIOR COURT - which led to my son Max Mars being beaten on his birthday by schizophrenic mother, kidnapped to undisclosed location, being unlawfully detained by schizophrenic mother without right for a phone call, and me being arrested for bringing donuts and hot chocolate to my son to cheer up him in days of repetitive violence of his schizophrenic mother, motivated by "court orders" obtained by repetitive fraud on court of three disqualified crooks from Santa Clara County Superior Court.

All that wouldn't happen if Presiding Judge Beth McGowen will timely DISQUALIFY BRIBED CROOK ANDREA FLINT AND NULLIFY ALL HER ORDERS OBTAINED BY FRAUD ON COURT RETROACTIVELY BACK TO 09/13/2022.

Unfortunately, so far it looks like Presiding Judge Beth McGowen is supporting and endorsing organized crime under label of law in Santa Clara County Superior Court - that's why REPETITIVE BRIBERY OF JUDGES, AND SEVERE REPETITIVE FRAUD ON COURT FLOURISH UNDER SUPERVISION OF BETH MCGOWEN, AND BRIBED CROOKS LIKE LOWNEY AND FLINT AND ABSOLUTELY CONFIDENT THAT "PRESIDING JUDGE WILL NEVER DISQUALIFY JUDGE" - AND ARE FREELY THREATENING AND PUNISHING EVERYBODY WHO DISQUALIFIES BRIBED CROOKS FOR FRAUD ON COURT.

SUCH ATMOSPHERE OF UNCONTROLLABLE OUTBURST OF BRIBERY AND ORGANIZED CRIME UNDER SUPPORT AND PROTECTION OF PRESIDING JUDGE BETH MCGOWEN IS ABSOLUTELY IMPERMISSIBLE.

Dear Commission on Judicial Performance and Chief Justice Patricia Guerrero,  
I respectfully ask you for help to discipline Presiding Judge Beth McGowen for nurturing, supporting and endorsing bribery and organized crime in Santa Clara County Superior Court.  
I also respectfully ask your help to obtain OFFICIAL CONFIRMATION OF DISQUALIFICATION AND NULLIFICATION OF ALL ORDERS OF THREE DISQUALIFIED CROOKS ("JUDICIAL OFFICERS") STEPHEN LOWNEY, ANDREA FLINT, AND JAMES TOWERY - RETROACTIVELY BACK TO 09/13/2022.

Appreciate your prompt attention to this urgent matter.  
Thank you.

**File Upload**

2024-02-20 Disqualification against Lowney.pdf

2023-11-13 Disqualification against Flint.pdf

2023-11-30 Disqualification against Flint Amended.pdf

PAJAR Response - Flint.pdf

2023-06-29 [Flint] Emergency screener recommendations removed, custody orders falsified.pdf

2023-07-31 [Flint] Partial Trial - Financial fraud, stealing VW Tiguan.pdf

2023-11-13 [Flint] Partial Trial - Financial fraud, falsified bank statements, order to pay \$6,895 by fraud on court.pdf

2023-11-28 Hanna's DVRO for greeting Max with Birthday (printed).pdf

2024-02-01 [Lowney] Sanctions \$500 for request to reconsider financial fraud of FLint, reconsideration denied.pdf

Evidence for Complaint 2024-02-01 - Threatening that it is impossible to disqualify judge.pdf